

Founders Collaboration Memo (v2)

Early-stage working agreement for two founders before company formation

Project working title WeDance

Date _____

Founder 1 _____

Founder 2 _____

Purpose. This memo is meant to protect both founders while keeping things simple. It records the current working rules of the project before a company is formed. It should be reviewed and upgraded with a local startup lawyer before incorporation, equity issuance, outside funding, or major revenue.

1. Project and stage

The founders are working together on an early-stage product in the dance festival space. The present goal is to shape the product, build and test an MVP, validate demand, and decide whether to continue toward a formal company.

2. Roles

One founder primarily leads technical execution, product build, and infrastructure. The other founder primarily leads product strategy, positioning, monetization, market validation, sales logic, and partnerships. Both founders participate in major product and business decisions.

3. Decision-making

No founder may unilaterally make a major decision about product direction, business model, branding, new partners, outside fundraising, sale of the project, or any significant expense. These decisions require the clear agreement of both founders.

4. Project assets and IP

All code, product logic, mockups, designs, names, domains, documents, strategy materials, data models, research, user lists, and other work product created specifically for this project are treated as project assets. The founders acknowledge that project assets created before this memo — including but not limited to code repositories, domains, brand assets, design files, strategy documents, and cloud accounts — are jointly held project assets under the same terms as assets created after this date. A shared inventory of these assets is maintained separately.

Neither founder may use, license, sell, transfer, or take these assets outside the project without the written consent of the other founder. If a company is later formed, both founders intend that project assets created for this project will be assigned to that com-

pany.

5. Confidentiality and non-use outside the project

Each founder will keep non-public project information confidential, including product plans, code, designs, research, market strategy, partner conversations, and financial discussions. Neither founder will use these materials to build, advise, or support a competing version of the same project outside this collaboration without the written consent of the other founder.

This non-use obligation applies during the collaboration and for 12 months after a founder's departure. For purposes of this section, a "competing version" means a product substantially similar in function to the project's core offering at the time of departure.

6. New partners and equity promises

No new cofounder, equity partner, advisor with equity, or similar strategic participant may be added without the agreement of both founders. No founder may promise ownership, revenue share, or special rights to a third party on behalf of the project without written approval from the other founder.

7. Expenses, revenue, and accounts

Any project expense above EUR 100 per month per item should be discussed in advance. The founders will maintain a shared expense log. If the project receives revenue before a company is formed, the founders will agree in writing on how the money is held, used, reinvested, or distributed before any payment is made. Shared tools, accounts, repositories, and important project access should remain transparent to both founders.

8. If one founder pauses or leaves

If one founder wants to pause or leave the project, that founder must give at least 60 days' written notice and cooperate in a clean handover of files, passwords, repositories, documents, and open tasks. A founder who leaves may not remove project assets or continue using them outside the project without written agreement from the remaining founder.

9. Future formalization

If the project shows real traction, meaningful code, external money, users, or revenue, the founders intend to move promptly to a proper legal setup, including company formation, equity structure, vesting, and formal IP assignment. The founders' working assumption is an equal (50/50) equity split, to be formalized at incorporation.

10. Governing law and disputes

This memo is governed by the laws of Germany. Any disputes will first be addressed through good-faith discussion. If unresolved within 30 days, the founders agree to seek mediation before pursuing legal action. The courts of Munich, Germany shall have juris-

diction.

Working principle. The founders are entering this memo in good faith to protect both sides, reduce future misunderstanding, and keep the project moving with clarity and respect for each other's contribution.

Recommended right after signing:

1. Fill in the legal names, date, and project title.
 2. Make a shared list of repositories, domains, cloud drives, and key accounts.
 3. Keep a simple decision log for product, money, and partner discussions.
 4. Book local legal review before company formation or outside money.
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Founder 1 signature

Name: _____

Date: _____

Founder 2 signature

Name: _____

Date: _____